

3.1345, detailing each disputed request, its text, the inadequate response/objection, and legal/factual reasons for compelling, so the court can rule without other documents; while motions to compel initial responses might not need one. (CRC 3.1345, CCP § 2030.300). However, because Defendants filed a Statement of Non-Opposition, the Court will not continue this motion to allow Plaintiff to come into compliance with this basic rule of motion practice. Counsel are admonished to comply with the Rules of Court and the Discovery Act in any future motions.

Ruling

This motion is **moot** in part and **granted** in part. The Court finds that Defendants have prepared responses to Plaintiff's Request for Production of Documents, Set One, Request for Admissions, Set One, Form Interrogatories, Set One, Special Interrogatories Set One. As such, the Motion is **moot**. Defendant Theresa Callejas is ordered to provide verifications no later than thirty (30) days after a guardian ad litem is appointed for her.

With respect to Plaintiff's request for sanctions, the motion is **granted**. The Court finds that Plaintiff was required to file and pursue this motion to compel further responses to discovery because Defendants, despite being provided with five weeks of extensions, did not file responses to discovery until December 3, 2025. The Court finds that this series of delays is without substantial justification and subjects Defendants to sanctions. Defendants are ordered to pay Plaintiff sanctions in the amount of \$3,600 no later than ten (10) days from the date of this hearing. The Court finds that the amount of sanctions are reasonable. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days following this hearing.

19. 9:01 AM CASE NUMBER: C23-02347

CASE NAME: KRISTIN CASEY VS. KRIS HANSEN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES FROM DEFENDANT D.R. HORTON, INC.**

FILED BY: CASEY, KRISTIN

TENTATIVE RULING:

Summary

Plaintiff Kristin Casey' ("Plaintiff") Motion to Compel Further Discovery Responses from Defendant D.R. Horton, Inc. is **granted** in part and **denied** in part as set forth in this tentative ruling.

Background

On August 11, 2025, Plaintiff Kristin Casey ("Plaintiff") filed a Motion to Compel Further Discovery Responses from Defendant D.R. Horton, Inc. ("DRH"). The Motion was supported by a Notice, Separate Statement, Declaration of Counsel Drew F. Teti. Plaintiff's Motion seeks further discovery responses to her Request for Production of Documents, Set 1, Nos. 1-37, and Form Interrogatories, Employment Set 1, No. 216.1 relating to the 42 affirmative defenses alleged by DRH. Plaintiff asserts that the objections made by DRH in their discovery response are "single, boiler-plate mega objections" that are improper, amounting to over 1500 objections to the discovery requests.

On December 4, 2025, DRH filed its opposition to the Motion, supported by a declaration of Counsel Zachary T. Lynch. In summary, DRH asserts Plaintiff's motion is procedurally defective, that DRH

objections are valid, and their responses are code-compliant pursuant to the Discovery Act. Defendant also asserts that Plaintiff has failed to meet and confer regarding Electronically Stored Information (“ESI”).

On December 10, 2025, Plaintiff filed a reply brief addressing the points raised in opposition, which the Court considered.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

The moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (Cal. Code of Civ. Proc. § 2031.240(c)(1).

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remain applicable today. “That is, the Legislature intended to take the “game” element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away “with the sporting theory of litigation—namely, surprise at the trial.” *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to “make a trial less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.”

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c).

Here, the record submitted to the Court show that counsel attempted to meet and confer by

exchanging communications about this discovery dispute. This requirement is satisfied.

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

The Court makes the following ruling and orders regarding:

1. Plaintiff's Motion to Compel Further Response to Request for Production of Documents, Set One:
 - A. Requests Nos. 1, 2, 3, 4, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15, 6, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36 : **Granted**. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that DRH does not have documents to produce, it shall comply with Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. And, to the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed.
 - B. Request No 17: **Granted** in part and **denied** in part. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses to this request. To the extent that DRH does not have documents to produce, it shall comply with Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed. The Court finds that the request for FEHA claims for the past 10 years preceding Plaintiff's claims are overbroad in scope. This objection is sustained. DRH is ordered to produce three (3) years of prior FEHA claims made against DRH.
 - C. Request No 37: **Granted** in part and **denied** in part. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound*,

supra. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that Plaintiff's request for documents that Defendant believes are relevant to the dispute, but have not already been produced is vague, ambiguous and overbroad. This request is **denied**.

2. Plaintiff's Motion to Compel Further Response to Form Interrogatories, Set One.

- A. No. 215.1: **Granted**. The preliminary and specific objections to this response constitutes impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant answers to this request, including the subparts, (a), (b), and (c).
- B. No. 216.1, Affirmative Defenses 1, 2, and 14, : **Granted**. DRH's preliminary and specific objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed..
- C. No. 216.1, Affirmative Defenses 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, and 42 : **Granted** in part. **Denied** in Part. DRH's preliminary and specific objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed. The Court finds that DRH has answered these interrogatories.
3. Time of Production: DRH is ordered to produce further responses, including documents, per the above no later than ten (10) days from the date of being served with an order after hearing.

4. Plaintiff is ordered to prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling as an exhibit.

20. 9:01 AM CASE NUMBER: C23-01292

CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF PATRICIA KUBICHEK'S DEPOSITION**

FILED BY: KUBICHEK, PATRICIA

TENTATIVE RULING:

Summary

This matter comes before the Court on Defendant Accor Management US, Inc. dba Fairmont Hotels' ("Accor") Motion to Compel the Deposition of Plaintiff Patricia Kubichek ("Plaintiff") and for sanctions. The Motion is **granted** in its entirety, as set forth herein.

Background

Plaintiff alleges that she sustained injuries and damages after being struck in the head by a lava rock thrown by a minor hotel guest while she was at or near the beach adjacent to the Fairmont Hotel operated by Accor. Plaintiff initiated this action against Accor and the minor's parents, Defendants Michael and Leslie Yrueta (collectively, "Yruetas").

Accor served a notice of deposition on Plaintiff for November 20, 2023. However, the deposition was repeatedly canceled by Plaintiff's counsel, Flavio Cajina. On February 20, 2024, the Court ordered Plaintiff's deposition to be completed by June 18, 2024. By Court order dated April 30, 2025, Mr. Cajina was disqualified from representing Plaintiff at her deposition.

On July 11, 2025, Accor served its Third Amended Notice of Taking Deposition for August 5, 2025 (Dellecker Declaration, Exhibit A). Plaintiff filed no objection to the Notice. Accor contends that Plaintiff and her counsel failed to cooperate with the noticed deposition and did not meaningfully meet and confer to propose an alternative date. To date, Plaintiff's deposition remains untaken.

On August 29, 2025, Accor filed the present Motion to Compel, supported by a Notice, Memorandum of Points and Authorities, Declaration of Counsel Catherine L. Dellecker, and a proposed order. On December 1, 2025, the Yruetas joined Accor's motion.

Plaintiff filed her opposition on December 4, 2025, supported by the Declaration of Counsel Fulvio F. Cajina. Mr. Cajina asserts that as of March 26, 2025, the Court disqualified him from taking or defending Plaintiff's deposition. He further alleges that Accor unilaterally noticed Plaintiff's deposition for August 4, 2025, without conferring with him. Mr. Cajina states he was unable to secure counsel to represent Plaintiff at the deposition and that Plaintiff was unavailable and traveling at the time, while he was engaged in a multi-week federal trial that concluded on August 26, 2025. He offered to reschedule the deposition for September, but Accor declined to accommodate his trial schedule and instead filed this motion. Plaintiff argues that Accor failed to meet and confer in good faith. The Court has considered Plaintiff's additional arguments.

On December 12, 2025, Accor filed its reply, requesting that the Court order Plaintiff to appear for her deposition and produce the records requested in the deposition notice. Accor disputes Plaintiff's claim